

EXHIBIT I

September 30, 2022 Abdelhalim Deposition

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Deposition of Subhi Abdelhalim

1 BE IT REMEMBERED that, pursuant to Notice of
2 Taking Deposition, and on Friday, September 30, 2022,
3 commencing at 10:01 a.m. thereof, before me, ANGIE M.
4 MATERAZZI, a Certified Shorthand Reporter, personally
5 appeared remotely

6 SUBHI ABDELHALIM

7
8 called as a witness by the Plaintiff, who, having been
9 first duly sworn, was examined and testified as follows:

10 --oOo--

11 THE REPORTER: Do all counsel stipulate to the
12 swearing in of the witness remotely?

13 MR. CHAMBERS: Yes.

14 MS. LEVY: Yes.

15 EXAMINATION BY MS. LEVY

16 Q. Good morning, sir. My name is Kim Levy. I
17 represent the plaintiff in this matter, Franciscus
18 Rosario. We are here today to talk about a collision
19 that happened on February 4th, 2021.

20 Do you recall that collision?

21 A. Yes.

22 Q. Could you please state --

23 A. When you say "recall," do you mean, do you
24 remember that collision, right?

25 Q. Yes. Yes. Correct.

1 **A. Yes.**

2 Q. Thank you for clarifying. So if I ask a
3 question that's confusing or that you don't understand,
4 please let me know, okay? I will rephrase the question
5 for you, all right?

6 **A. Yes.**

7 Q. All right. I'm just going to go over some
8 ground rules of how a deposition goes, to make things go
9 smoothly and help us out -- get done as quickly as
10 possible, okay?

11 **A. Okay.**

12 Q. So the first thing is, you've just taken an
13 oath to tell the truth. Your testimony here today is
14 under penalty of perjury. That's the same oath that you
15 would take if you were testifying in a court of law to
16 tell the truth.

17 Do you understand that?

18 **A. Yes.**

19 Q. Okay. You're doing a great job. In order to
20 get an accurate record, we want to make sure that you
21 wait until I'm finished talking, or your attorney is
22 finished talking, before you begin your answer, okay?
23 You're doing great so far and I'll try not to talk over
24 you, as well, okay?

25 **A. Okay.**

1 right?

2 **A. Correct.**

3 Q. From Jessie alley, on the date of the
4 collision, where -- where did you exit -- on what street
5 did you exit?

6 **A. You go -- alley is one way down from 6th. And**
7 **from there, you see the Mint building, which is -- you**
8 **know the Mint building, they used to make coin in?**

9 Q. Yes.

10 **A. You cannot go straight up. You have to turn**
11 **left and there's a stop sign on Mission. And after**
12 **that, you have to turn right on that alley to take**
13 **Mission.**

14 Q. Okay. And then once you're on Mission, where
15 did you go?

16 **A. From Mission, comes 5th Street.**

17 Q. Okay. So which direction were you traveling
18 on 5th Street before this collision?

19 **A. When I get to Mission, I have to turn left on**
20 **Mission, which is -- there's a light. I remember I have**
21 **to wait on light. And slowly I went to 5th and Mission,**
22 **south.**

23 **We find another street called Howard Street.**
24 **After Howard --**

25 Q. And from there, where did you go?

1 A. After I crossed Howard, which is -- I'm going
2 south right now. After I cross Howard, I attempt to
3 turn left on Tehama. It's street or alley. I just
4 can't call it.

5 Q. So you were turning left from -- right before
6 this collision happened, you were turning left from 5th
7 Street onto Tehama?

8 A. Yes. After I cross Howard -- which is another
9 street -- I go down a little bit farther and Tehama is
10 on my left. So I slowed down and very, very, very
11 slowly -- very slowly to go -- there's a lot of traffic,
12 so I turn down Tehama, on my left.

13 Before I turn down, everything was clear,
14 nobody on left, nobody on right, barely going 5 miles an
15 hour. So when I finished turning, I complete my turn,
16 completely. I don't hear anything bump into me or
17 impact my car or anything, but I heard some screaming.
18 I was going slowly. I heard some screaming. I look in
19 my mirror, both sides, left or right, and I see somebody
20 laying down on the sidewalk screaming.

21 I say, Be a good citizen, see what's going on.
22 So I stop and I pulled my vehicle on the right to the
23 street, so -- I don't want to block nobody's traffic.
24 And I get out of my car to see who is that laying down
25 and screaming. I went and I say, Are you okay, guy? He

1 didn't say anything. I say, I'm going to calling 911
2 for you. He didn't say nothing. I call 911 and I
3 describe what's going on and I waited until the police
4 come and the ambulance.

5 So, of course, they come and see the guy. And
6 after a while, I still -- I don't go nowhere. I still
7 waited. After that, the police come to me. You see
8 anything? I say what I told you right now. I heard
9 some screaming and I waited and I couldn't see and the
10 guy say -- don't say nothing, mumbling, whatever.

11 The police tell me -- he told me, Okay. The
12 police took -- was talking to the guy. And after --
13 suddenly came to me and I see them taking scene pictures
14 and talking. And he said, Hey, guy, you have a driver's
15 license and your information about you? I say, Yeah. I
16 say, Why? They say, The guy claim you hit him. I said,
17 Well, thank God -- thank God I'm a good citizen. I
18 don't -- I never left. Otherwise, I'd be blamed for
19 everything, even true or not true.

20 So I provided him with my information, my
21 driver's license, my insurance and everything. He took
22 pictures, photo for -- from my vehicle. And after that,
23 I waited. He come back and tell me, Sir, you have a
24 good day. You're good to go. And that's what happened.

25 Q. Okay. Thank you for all of that information.